

23NWCV03034 23NWCV03034

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-18

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Case Number: 23NWCV03034 Hearing Date: August 18, 2026 Dept: R

#17

SCOTT, ET AL. v. MAJANO

CASE

NO.: 23NWCV03034

HEARING:

Tuesday, August 18, 2026, at 9:30 AM

Plaintiff

GILBERT HERNDANDEZ SCOTT's Motion for Terminating Sanctions is DENIED without prejudice.

Moving

Party to give Notice.

Background

On September

21, 2023, Plaintiffs GILBERT HERNANDEZ SCOTT and GILBERT BENNY SCOTT filed this action against Defendant MARIO R. MAJANO ("Defendant").

On June 10,

2024, Plaintiff GILBERT HERNANDEZ SCOTT ("Plaintiff") dismissed Plaintiff GILBERT BENNY SCOTT.

Plaintiff's

Complaint asserts the following causes of action;

(1)

Breach of Implied Warranty of Habitability;

(2)

Breach of Statutory Warranty of Habitability;

(3)

Breach of the Covenant of Quiet Enjoyment;

(4)

Violation of Civil Code § 1942.5;

(5)

Violation of § IX of the Los Angeles County
Covid-19 Tenant Protections Resolution;

(6)

Negligence; and

(7)

Private Nuisance

On February

25, 2026, Plaintiff filed the instant motion for Terminating Sanctions.

Terminating

Sanctions

Plaintiff

moves for Terminating Sanctions on the grounds that Defendant willfully failed to comply with the Court's December 11, 2025, Order compelling Defendant to serve verified, objection-free responses to Plaintiffs' Form Interrogatories, Set One, and Requests for Production of Documents, Set One within thirty (30) days.

CCP

§2023.010 includes: "(b) Using a discovery method in a manner that does not comply with its specified procedures. (c) Employing a discovery method in a

manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (d) Failing to respond or to submit to an authorized method of discovery.... (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.”

(Id.) CCP §2023.030 provides, in part: “To the extent authorized by this chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, may impose the [sanctions] against anyone engaging in conduct that is a misuse of the discovery process, including monetary and issue and terminating sanctions.” Sanctions which may be imposed for a misuse of the discovery process include “terminating sanctions.”

“A decision

to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) When deciding whether to impose terminating sanctions, courts generally weigh three factors: (1) whether the party subject to the sanction acted willfully, (2) the detriment to the party seeking discovery, and (3) the number of formal and informal unsuccessful attempts to obtain discovery. (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702; Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Nonmonetary sanctions require evidence of willful violations of discovery orders or a history of egregious abuses of discovery. (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486.) A prerequisite to the imposition of nonmonetary sanctions is willful disobedience of a court order. (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403.) By requiring a violation of a discovery order before imposing nonmonetary sanctions, California courts can be sure that the offending party does not intend to comply with the discovery request. (Ruvalcaba v. Government Employees Insurance Co. (1990) 222 Cal.App.3d 1579, 1581.) “[A] terminating sanction issued solely because of a failure to pay a monetary discovery sanction is never justified.” (Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615.)

It

is a commonly stated axiom that discovery sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.)

The Court does not find that terminating sanctions are warranted here. The Court must take an incremental approach to sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. (*Doppes v. Bentley Motors, Inc.* 174 Cal.App.4th 967, 992.) Further, imposing terminating sanctions would place Plaintiff in a better position than he would be in had he obtained the discovery sought and had that discovery been favorable. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1193.)

Accordingly, the Court finds that issue and/or evidentiary would have been more appropriate. However, Plaintiff failed to request such sanctions in his motion.

Moreover, the Court declines to impose terminating sanctions based on Defendant's failure to pay previously awarded monetary sanctions. A sanctions order is enforceable in the same manner as a money judgment. A writ of execution may be issued and levied on the property of the person sanctioned. (See *Newland v. Sup. Ct.* (1995) 40 Cal.App.4th 608, 615.)

Plaintiff's Motion for Terminating Sanctions is DENIED without prejudice.

Defendant is ORDERED to comply with the Court's December 11, 2025, Order within seven (7) days of the Court's issuance of this Order. If Defendant fails to comply, Plaintiff may renew his Motion for Terminating Sanctions.